

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
BEVERLY CHANEY,

Plaintiff,

Index No.:

Filed :

-against-

SUMMONS

CITY OF NEW YORK, POLICE OFFICERS
JOHN DOE 1-11, individually and in
their official capacity, (whose names
being fictitious, the true names
being unknown to the plaintiff) and
POLICE OFFICER JORGE AGUILA,

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on plaintiff's attorneys within 20 days after service of this summons, exclusive of the day of service or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

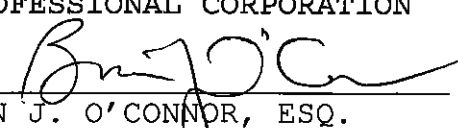
Plaintiff designates BRONX County as the place of trial. The basis of the venue designated is the place of occurrence, inside 257 Alexander Avenue, Bronx, New York, 10454.

Dated: New York, New York
April 25, 2016

Yours, etc.

THE O'CONNOR LAW FIRM
A PROFESSIONAL CORPORATION

By:


BRIAN J. O'CONNOR, ESQ.
Attorney for Plaintiff
BEVERLY CHANEY
45 Broadway, Suite 3020

New York, New York 10006
(212) 566-4868

DEFENDANTS' ADDRESSES:

CITY OF NEW YORK
Office of the Corporation Counsel
New York City Law
Department
100 Church Street
New York, NY 10007

POLICE OFFICERS JOHN DOE 1-11
c/o City of New York
Office of the Corporation Counsel
New York City Law Department
100 Church Street
New York, NY 10007

POLICE OFFICERS JORGE AGUILA
C/O 40TH Precinct
257 Alexander Avenue
Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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BEVERLY CHANEY,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICERS
JOHN DOE 1-11, individually and in their official
capacity, (whose names being fictitious, the true names
being unknown to the plaintiff) and POLICE OFFICER
JORGE AGUILA,

Defendants.

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VERIFIED COMPLAINT

Index No.:

Plaintiff, by her attorney, THE O'CONNOR LAW FIRM, A PROFESSIONAL
CORPORATION, complaining of the defendants herein, alleges as follows:

1. That at all times herein mentioned, the plaintiff was and still is a resident of the County of Bronx, City and State of New York.
2. That the incident which is the basis of the within action took place in Bronx County, City and State of New York.
3. At all times mentioned herein, defendant, CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. At all times hereinafter mentioned, the NEW YORK CITY POLICE DEPARTMENT was and still is an agency and/or department of the defendant CITY OF NEW YORK.

5. That at all times herein mentioned, plaintiff served a Notice of Claim and Intention to Sue thereupon on defendant CITY OF NEW YORK on April 20, 2015 within the time prescribed by law.

6. That at least thirty (30) days have elapsed since the service of said Notice of Claim and the defendant CITY OF NEW YORK has neglected and refused to make an adjustment in payment thereof.

7. That plaintiff appeared for a hearing pursuant to the General Municipal Law 50-h on July 8, 2015.

8. That the plaintiff has duly complied with all statutes and laws applicable to the defendant CITY OF NEW YORK precedent to the making of this claim and bringing this action.

9. Defendant, CITY OF NEW YORK maintains the NEW YORK CITY POLICE DEPARTMENT, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, CITY OF NEW YORK.

10. At all relevant times and in all their actions, the defendants were acting under color of law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the City and State of New York and pursuant to their authority as police personnel.

11. At all relevant times, defendants were acting as the agents, servants, and employees of defendant, CITY OF NEW YORK.

12. The defendants are sued individually and in their official capacity.

13. Each and all of the acts of the defendants alleged herein were performed by said defendants while acting within the scope of their employment.

14. At all times relevant to this action, defendant, POLICE OFFICER JOHN DOE #11 was a policy maker with respect to training, supervision, and discipline of NYPD officers, including the other individually named defendants.

15. That on January 28, 2015, plaintiff, BEVERLY CHANEY, while attempting to lawfully walk into the 40th Precinct, located at 257 Alexander Avenue, Bronx, New York, 10454, was unlawfully grabbed, carried inside the precinct and violently thrown to the ground by POLICE OFFICERS JOHN DOE 1 and 2.

16. At the aforesaid time and place, as Plaintiff, BEVERLY CHANEY, was thrown to the ground by defendants, POLICE OFFICERS JOHN DOE 1 AND 2, and immediately handcuffed, defendants, POLICE OFFICERS JOHN DOE 3-9, failed to intervene to stop the unlawful acts of the other defendants.

17. At the aforesaid time and place, plaintiff was thereafter taken into a bathroom, told to drop her pants and open her shirt and was searched.

18. The aforesaid assault and battery occurred through the use of excessive and unjustified force, without provocation, and without reasonable cause. Plaintiff was thereafter refused medical attention until finally being taken to Lincoln Hospital, treated and released into police custody and then taken back to the 40th Precinct and searched again.

19. Upon information and belief, on January 29, 2015, plaintiff was transported from the 40th Precinct to central booking where she was again searched. During said search, defendant, POLICE OFFICER JORGE AGUILA, falsely alleged that plaintiff was in possession of a controlled substance, despite being previously searched multiple times at the 40th Precinct.

20. Plaintiff was immediately taken back to the 40th Precinct from central booking and then taken to Court on January 30, 2015 where plaintiff was falsely charged with Trespass (140.05) and Disorderly Conduct (240.20(6)) arising out of the incident on January

28, 2015 and criminal possession of a controlled substance (220.03) arising out of the search at central booking on January 29, 2015.

21. The trespass and disorderly conduct charges were dismissed on June 4, 2015. The plaintiff received an Adjournment in Contemplation of Dismissal of the criminal possession of a controlled substance charge on April 13, 2015.

22. As a result of the foregoing, plaintiff sustained, *inter alia*, physical injuries, pain and suffering, emotional distress, embarrassment, humiliation, a deprivation of her state and federal rights and constitutional rights.

23. The abuse to which plaintiff was subjected was consistent with an institutionalized custom and practice of the New York City Police Department, which was known to and ratified by defendant CITY OF NEW YORK.

24. Despite knowledge of these institutionalized customs and practices, the defendant CITY OF NEW YORK has at no time taken any effective action to prevent New York City police personnel from continuing to engage in this type of misconduct.

25. Defendant CITY OF NEW YORK had prior notice of the propensities of the individually named defendants but took no steps to train, retrain, or adequately supervise or discipline them to correct their abuse of authority or to discourage their unlawful use of authority.

26. Defendants filed false and baseless charges against plaintiff in violation of plaintiff's civil and constitutional rights and offered false and perjurious testimony in connection with the prosecution of her case.

27. As a result of the foregoing, plaintiff sustained, *inter alia*, physical injury, pain and suffering, emotional distress, embarrassment, humiliation, a deprivation of her state and federal rights and constitutional rights, loss of earnings and incurred medical expenses and expects to incur medical expenses in the future.

28. That this action falls within one or more of the exceptions set forth in Article 16 of the C.P.L.R.

FIRST CAUSE OF ACTION
(Deprivation of Federal rights under 42 U.S.C. Section 1983)

29. Plaintiff repeats and realleges each and every allegation of paragraphs “1” through “28” with the same force and effect as if fully set forth herein.

30. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the City of New York and the New York City Police Department, which is forbidden by the Constitution of the United States.

31. There was no probable cause or other legal excuse or privilege for the aforesaid alleged instances of assault, battery, false arrest, false imprisonment, or malicious prosecution.

32. That the individual defendants falsely represented to other employees of the defendants CITY OF NEW YORK and the Office of the District Attorney, that the plaintiff committed the aforesaid alleged criminal offense(s) in order to make it appear that there had been a justification for the arresting, imprisoning, assaulting, battering, causing an assault and battery upon plaintiff, trespass and use of physical force on the plaintiff and the criminal prosecution of plaintiff, in order to protect the individual defendants, or certain of such individual defendants, from civil and criminal liability for such acts.

33. That various employees of the defendant, CITY OF NEW YORK knew that the individual defendants, or certain of the individual defendants, falsely represented to other employees of the defendants that plaintiff had committed the criminal offenses previously alleged in order to make it appear that there had been a justification for the arresting,

imprisoning, assaulting, battering, and use of physical force on the plaintiff, and the criminal prosecution of the plaintiff, in order to protect the individual defendants, or certain of the individual defendants, from civil and criminal liability for such acts, and said other employees of the defendants, violated the proper procedures of defendants in failing to disclose such false statements by the individual defendants, or certain of the individual defendants, and/or otherwise assisted the individual defendants, or some of them, in making such false statements, all for the purpose of protecting the individual defendants, or some of them, from civil and criminal liability for the arresting, imprisoning, assaulting, and battering of the plaintiff, and for the criminal prosecution of the plaintiff.

34. That the aforementioned official customs, usages, practices and procedures of the defendant CITY OF NEW YORK through its NEW YORK CITY POLICE DEPARTMENT were implemented and created by its employees, including those supervisory and/or commanding employees of the New York City Police Department whose acts and/or omissions create "official policies, customs and/or practices" within the meaning of 42 U.S.C. 1983. Said official customs and practices included, but were not limited to, the following:

a) Encouraging, allowing, and/or ratifying a policy and custom whereby senior commanding police officers cover up or otherwise hinder the disciplining and/or prosecution of those police officers under their command that have engaged in unjustified, unreasonable and illegal use of force and search and arrest powers;

b) Refusing to release to persons who claim they have been subject to unjustified, unreasonable and illegal use of force and search and arrest powers by police officers the defendants' internal and official documents relative to the incidents that give rise to such claims;

c) Maintaining a system for disciplining police officers and investigating civilian complaints of improper police conduct that is dominated and controlled by police

department employees who are unable to be impartial and who systematically refuse to give proper weight to evidence of police misconduct;

d) Tolerating the use of abusive language and sentiments among members of its police departments and failing to discipline or discharge those police officers who engage in such conduct;

e) Failing to properly hire, train and supervise police officers in a fashion that would encourage police officers not to engage in the unjustified, unreasonable, illegal and abusive use of force and search and arrest powers, and in ratifying, justifying, and protecting from civil and criminal liability the acts of those police officers that are unjustified, unreasonable and involve the illegal or abusive use of force and search and arrest powers.

f) Maintaining and operating police Internal Affairs Units in which the supervisors of said Units engage in a systematic policy and practice of refusing to fully investigate complaints of police misconduct. Said supervisors also intentionally obstruct investigations of police misconduct by instructing those persons under their command not to seek relevant and necessary evidence to document claims of police misconduct.

g) Failing to act to discipline, suspend and/or otherwise take remedial action against those employees of the New York City Police Department who, while acting under the color of state law, violated the civil rights of members of the public.

h) Allowing, suffering, creating and/or otherwise permitting an environment whereby a custom and practice known as "the wall of silence" exists. Said custom and practice involves a virtually uniform refusal by New York City police officers to testify truthfully about instances of police misconduct and civil rights violations. Said custom and practice involves either failing to testify about, or otherwise act to prevent, police misconduct and civil rights violations.

i) Allowing, suffering, creating and/or otherwise permitting an official policy, custom and/or practice of hiring and retaining for employment police officers with

predispositions to abuse and violate the civil rights of others. This policy, custom and practice is evidenced, in part, by the CITY OF NEW YORK'S inadequate and/or non-existent attempts to screen applicants with such tendencies and exclude them from employment as police officers and/or discharge such persons from employment as police officers.

j) Active participation in and/or condoning of, conspiracies by various members of its police force, including senior commanding and/or other supervisory police officers, to, while acting under color of state law, deprive persons of their civil rights.

k) Isolating the City of New York's Law Department from the discipline of police officers so that civil suits against police officers arising out of the scope of their employment are ignored without investigation or review by the police department. Such civil suits have no impact on the employment of these officers, including suits resulting in verdicts against the police officers.

l) Failing to discipline officers for making false statements to disciplinary agencies and courts with no procedure to notify officers' supervisors of unfavorable judicial review of their conduct in providing perjurious, exaggerated and incredible testimony.

35. As a result, the defendants were caused and encouraged to believe that non-Caucasian persons could be subjected to unjustified, unreasonable and illegal use of force and search and arrest powers, and that such acts or omissions would, in fact, be permitted and ratified as just and proper by the defendants.

36. That alleged victims of the aforesaid wrongful actions, policies and customs of the defendants existed prior to January 28, 2015.

37. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff BEVERLY CHANEY, was assaulted, subjected to wanton and excessive use of force, unlawfully stopped, seized, detained, searched, imprisoned, falsely arrested and maliciously prosecuted.

38. That if certain of the individual defendants did not themselves engage in tortious conduct or physically assault, batter and abuse the plaintiff, or arrest her, said individual defendants failed to prevent the physical assault, battery, arrest and abuse of the said plaintiff and other tortious conduct by the other individual defendants despite having a duty to do so, said failure to act being either intentional and/or in gross disregard of the civil rights of the plaintiff, BEVERLY CHANEY.

39. By the actions described above, the defendant CITY OF NEW YORK, by the acts of its employees, including the individual defendants, in furtherance of the said official policies and/or customs, deprived plaintiff of the following clearly established and well-settled constitutional rights:

- a. Freedom from the use of excessive and unreasonable force;
- b. Freedom from unreasonable stops, frisks, searches and seizures;
- c. Freedom from the deprivation of liberty and summary punishment without due process of the law;
- d. Equal protection under the law;

40. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department deprived plaintiff, BEVERLY CHANEY, of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States of

America and in violation of 42 U.S.C. Sections 1983, 1985 (2) (3), 1986 and 1988 and were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

41. That as a result of the foregoing, the plaintiff has suffered physical pain, sustaining severe and permanent personal injuries, psychological injuries and has further suffered loss of freedom, loss of quality and/or enjoyment of life, past medical expenses and further medical expenses to be incurred in the future.

42. The foregoing acts of the defendants were so egregious and reprehensible and were performed in a manner which so violates the law and were so outrageous that it constitutes conduct that no civilized society should be required to tolerate.

43. As a result of the foregoing, plaintiff BEVERLY CHANEY, has been damaged and is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest)

44. Plaintiff repeats and realleges each and every allegation of paragraphs "1" through "43" with the same force and effect as if fully set forth herein.

45. Plaintiff was arrested and imprisoned without a warrant for her arrest.

46. Plaintiff was conscious of and did not consent to the confinement.

47. There was no justification, or probable or reasonable cause or privilege for the confinement.

48. As a result of the aforesaid conduct by defendants, plaintiff was subjected to an illegal and improper stop, search and seizure, and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, and confined in wanton and reckless disregard for plaintiff's constitutional rights.

49. That by reason of the foregoing, the plaintiff, BEVERLY CHANEY, has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
(Assault and Battery)

50. Plaintiff repeats and realleges each and every allegation of paragraphs "1" through "49" with the same force and effect as if fully set forth herein.

51. Defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

52. Defendants physically struck plaintiff, BEVERLY CHANEY, in a harmful, violent, vicious, intentional, offensive, and unwanted manner.

53. Defendants assaulted and battered plaintiff, BEVERLY CHANEY without any provocation, reasonable cause or justification.

54. That as a result of the foregoing, the plaintiff has suffered physical pain, sustaining severe and permanent personal injuries, psychological injuries and has further suffered loss of quality and/or enjoyment of life, loss of earnings, past medical expenses and further medical expenses to be incurred in the future.

55. That by reason of the foregoing, the plaintiff, BEVERLY CHANEY, has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
(Excessive Use of Force and Negligence)

56. Plaintiff repeats and realleges each and every allegation of paragraphs “1” through “55” with the same force and effect as if fully set forth herein.

57. Defendants carelessly, negligently, and recklessly used excessive force against the plaintiff, BEVERLY CHANEY in the course of effecting the aforementioned arrest.

58. Each and all of the aforementioned acts of the defendants alleged herein were performed by said defendants while acting within the scope of their employment.

59. Defendants’ excessive use of force was without any provocation, reasonable cause, justification or privilege.

60. That as a result of the excessive force and negligence, the plaintiff has suffered physical pain, sustaining severe and permanent personal injuries, psychological injuries and has further suffered loss of quality and/or enjoyment of life, past medical expenses and further medical expenses to be incurred in the future.

61. That by reason of the foregoing, the plaintiff, BEVERLY CHANEY, has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION
(Abuse of Process)

62. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “61” with the same force and effect as if fully set forth herein.

63. Defendants issued legal process to place plaintiff BEVERLY CHANEY under arrest on January 29, 2015.

64. Defendants arrested plaintiff BEVERLY CHANEY on January 29, 2015 on an additional charge, while still in police custody, in order to obtain a collateral objective outside the legitimate ends of the legal process.

65. Defendants acted with intent to do harm to plaintiff BEVERLY CHANEY without excuse or justification.

66. That by reason of the foregoing, the plaintiff, BEVERLY CHANEY, has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION
(Malicious Prosecution under 42 U.S.C. 1983)

67. Plaintiff repeats and realleges each and every allegation of paragraphs “1” through “66” with the same force and effect as if fully set forth herein.

68. Defendants were state actors, acting with malice in issuing criminal process, commencing and prosecuting a criminal proceeding against plaintiff, BEVERLY CHANEY, arising out of the incident on January 28, 2015, in wanton and reckless disregard for plaintiff’s constitutional rights.

69. There was no probable cause, reasonable grounds or justification for the arrest and/or prosecution of plaintiff, BEVERLY CHANEY.

70. The charges of trespass and disorderly conduct arising out of the January 28, 2015 arrest were terminated in plaintiff’s favor on June 4, 2015.

71. As a result of the aforesaid conduct by defendants, plaintiff was subjected to a malicious prosecution and suffered a deprivation of liberty in wanton and reckless disregard for plaintiff's constitutional rights.

72. As a result of the foregoing, plaintiff BEVERLY CHANEY, has been damaged and is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Negligent Hiring, Supervision, Training and Retention)

73. Plaintiff repeats and realleges each and every allegation of paragraphs "1" through "72" with the same force and effect as if fully set forth herein.

74. Defendant CITY OF NEW YORK was careless, reckless and otherwise negligent in hiring, training, supervising and retaining as and for its employees, the individually named defendants.

75. Defendants lacked the maturity, sensibility, moral character and intelligence to be employed or remain employed by the defendant City of New York.

76. Defendant CITY OF NEW YORK knew or should have known that the said employees lacked the ability, competence, deportment, experience, maturity and moral character to be employed or remain employed by the defendant City of New York.

77. Defendant CITY OF NEW YORK failed to adequately investigate, supervise or monitor the individually named defendants daily activities and transactions.

78. Defendant CITY OF NEW YORK could reasonably have anticipated that the individually named defendants' lack of ability, competence, deportment, experience, maturity and moral character would likely result in injury to others.

79. That the aforesaid occurrences were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

80. That by reason of the foregoing, the plaintiff, BEVERLY CHANEY, has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

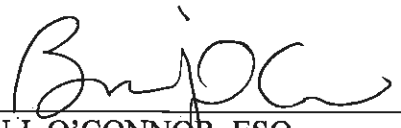
WHEREFORE, plaintiff, BEVERLY CHANEY, demands judgment against the defendants in an amount that exceeds the jurisdictional limits of all lower courts and that shall be determined by a jury, together with costs, disbursements and attorney's fees of this action.

Dated: New York, New York
April 25, 2016

Yours, etc.,

THE O'CONNOR LAW FIRM
A PROFESSIONAL CORPORATION

By:


BRIAN J. O'CONNOR, ESQ.
Attorney for Plaintiff
BEVERLY CHANEY
45 Broadway, Suite 3020
New York, New York 10006
(212) 566-4868

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state under penalty of perjury that I am the attorney for the plaintiff in the within action; I have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters I believe to be true. The reason this verification is made by me and not by my client(s), is that my client(s) is not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigation conducted by my office.

Dated: New York, New York
April 25, 2015



Brian J. O'Connor, Esq.

Index No. Year 2016
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COUNTY OF BRONX

BEVERLY CHANEY,

Plaintiff,

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Defendants.

SUMMONS AND VERIFIED COMPLAINT

THE O'CONNOR LAW FIRM
A PROFESSIONAL CORPORATION
Attorney for Plaintiff
BEVERLY CHANEY
45 Broadway, Suite 3020
New York, N.Y. 10006
(212) 566-4868

TO:
Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated:

.....

Attorney(s) for

Certification, NYCRR 130.1.1
The undersigned has certified the propriety
of the foregoing document(s) pursuant to
NYCRR 130.1.1


BRIAN J. O'CONNOR, Esq.

Dated: New York, New York
April 25, 2015